

Bhim Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 18 October 2011 · WRIT - C No. 59829 of 2011 · **Writ disposed; apply to Forum/Ombudsman under clause 7.10**

HEADNOTE

On a writ asking whether tariff was payable at rural or urban rates, a Division Bench held that Clause 7.10 of the U.P. Electricity Supply Code, 2005 supplies the remedy before the Consumer Grievance Redressal Forum and/or Ombudsman. Disputed questions of fact on tariff classification are not to be tried in writ for want of evidence. The petition was disposed of at admission with a direction to apply to that forum, to be decided by a reasoned order within one month.

FACTUAL SUMMARY

Bhim Singh petitioned the Allahabad High Court against U.P. Power Corporation Ltd. and others in Writ-C No. 59829 of 2011. The controversy was limited to tariff charges: whether the amount was payable at the rate applicable to a rural area or an urban area. Counsel for both sides were heard at the admission stage. The Division Bench recorded that it had no evidence or other material on which to decide that classification. The petition was not decided on the merits of the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

forum-ombudsman-route-for-billing-grievances

HOLDING

A writ raising a disputed question of fact as to whether tariff is payable at rural or urban rates is not to be decided by the High Court in the absence of evidence. The consumer's remedy is before the Consumer Grievance Redressal Forum and/or the Ombudsman under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The writ was disposed of at admission with a direction to apply to that forum, which shall hear and decide the application by a reasoned order after fullest opportunity of hearing, within one month of communication of the order. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Rural-versus-urban tariff classification is a billing grievance for the Clause 7.10 Forum/Ombudsman route; the writ court will not try it as a disputed question of fact. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S TARIFF IS CHARGEABLE AT RURAL OR URBAN RATES

Left to the Consumer Grievance Redressal Forum and/or Ombudsman under Clause 7.10. ¶ 1